

## 25STCV04554 25STCV04554

County: los-angeles

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Marrian Myungok Lee v. Spark Family Operations, LLC, et al.

Friday, September

11, 2026

TENTATIVE ORDER GRANTING

MOTION FOR LEAVE TO AMEND COMPLAINT [Res. No. -5886]

I.

BACKGROUND

The

complaint alleges that Defendant Spark Family Operations, LLC dba Sunny Hills Assisted Living ("Sunny Hills"), a residential care facility, neglected caring for its patient, Plaintiff Marrian Myungok Lee ("Lee"), causing her to develop severe health conditions and pass away. This action is brought by Lee (through her Successor-in-Interest and daughter Plaintiff Joanne Chu ("Chu")), and Chu in her individual capacity (collectively, "Plaintiffs").

On

February 18, 2025, Plaintiffs filed their Complaint against Sunny Hills and Does 1 through 40, inclusive, asserting causes of action for: (1) elder abuse/neglect (Welf. Inst. Code 15600, et seq.); (2) negligence; and (3) wrongful death.

On

April 24, 2025, Sunny Hills filed its Answer.

On

March 4, 2026, Plaintiffs amended their Complaint to substitute Defendant Steve Yong Jin Cho ("Cho") for Doe 1 and Select Care Home Health Services, Inc. ("Select Care") for Doe 21.

On

March 24, 2026, Plaintiffs dismissed the first cause of action.

Plaintiffs

now move for leave to file a First Amended Complaint ("FAC").

II.

## ARGUMENTS

A.

Motion filed July 9, 2026

The

proposed FAC adds additional facts concerning the conduct of Cho and Select Care. Counsel for Sunny Hills stated that the defendant will not oppose the motion. Defendants failed to file an opposition.

III.

## LEGAL STANDARD

"The

court may ..., in its discretion, after notice to the adverse party, allow, upon any terms as may be just, an amendment to any pleading or proceeding in other particulars; and may upon like terms allow an answer to be made after the time limited by this code." (Code Civ. Proc., § 473, subd. (a)(1).)

California

Rules of Court, rule 3.1324(a) states: "A motion to amend a pleading before trial must: ¶ (1) Include a

copy of the proposed amendment or amended pleading, which must be serially

numbered to differentiate it from previous pleadings or amendments; ¶ (2) State what allegations in the previous pleading are proposed

to be deleted, if any, and where, by page, paragraph, and line number, the

deleted allegations are located; and ¶

(3) State what allegations are proposed to be added to the previous pleading, if any, and where, by page, paragraph, and line number, the additional allegations are located.”

“A

separate declaration must accompany the motion and must specify: ¶ (1) The effect of the amendment; ¶ (2) Why the amendment is necessary

and proper; ¶ (3) When the

facts giving rise to the amended allegations were discovered; and ¶ (4) The reasons why the request for amendment was not made earlier.” (Cal.

Rules of Court, rule 3.1324(b).)

““Courts

must apply a policy of liberality in permitting amendments at any stage of the proceeding, including during trial, when no prejudice to the opposing party is shown.... “However, “even if a good amendment is proposed in proper form, unwarranted delay in presenting it may—of itself—be a valid reason for denial.””

[Citations.]” (Duchrow

v. Forrest (2013) 215 Cal.App.4th 1359, 1377.)

IV.

DISCUSSION

Plaintiffs have attached a copy of

the proposed FAC, which signals the changes in bold font. (Motion, Declaration of Destiny M. Verdugo, Esq. (“Verdugo Decl.”), ¶ 6; Exh. A.)

In addition, Plaintiffs’ counsel attests

to the following facts. The “proposed FAC does not add any new causes of action, does not change the parties as already substituted by Doe amendment, and do [sic] not alter the fundamental nature of the action. Rather, the amendments clarify CHO’s and SELECT CARE’s roles, knowledge, duties, conduct, agency relationships, and involvement in the care and oversight at issue, and conform the pleadings to information obtained after the initial filing. The amendments also make non-substantive edits for clarity and to correct typographical and formatting issues. Leave to amend is necessary and proper to ensure the operative pleading accurately reflects the facts discovered regarding CHO and SELECT CARE and to promote resolution on the merits.

Plaintiffs could not have included the proposed factual clarifications earlier

because CHO and SELECT CARE were unidentified at the time of the original Complaint filed on February 18, 2025. Upon learning CHO's and SELECT CARE's identities and roles, promptly filed Doe amendments and now seek to conform factual allegations accordingly. No party will suffer prejudice." (Verdugo Decl., 7.)

Based on the above, the Court finds that Plaintiffs have complied with the California Rules of Court requirements. No opposition has been filed arguing against the filing of the FAC. In addition, Plaintiffs have not unduly delayed in bringing the motion.

Therefore, the Court grants Plaintiffs' request to file the FAC.

Notwithstanding the above, for clarity purposes, the Court denies Plaintiffs' request to deem the proposed FAC filed. Instead, the Court will require Plaintiffs to file the pleading separately.

V.

#### CONCLUSION

Based on the foregoing, the Motion for Leave to File First Amended Complaint is GRANTED IN PART and DENIED IN PART as follows. The request to file the First Amended Complaint is GRANTED. The request to deem the proposed First Amended Complaint filed is DENIED. Plaintiffs are ordered to separately file and serve their First Amended Complaint within five (5) days of this ruling.